
Indigenous Law Institute

Comment: Pope Asks Forgiveness

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Will The Vatican Repeal The Inter Cetera?

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This past Sunday, March 12, 2000, Pope John Paul II begged God to forgive the sins of the “sons and daughters” of the Church. His goal is “purification of memory” by expressing sorrow for misdeeds committed by Christians over the past 2,000 years.

While the pope’s bold action is praiseworthy and groundbreaking, what is clearly missing from the pope’s request is a specific historical context. The International Theological Commission, which prepared a lengthy report to explain the pope’s action, said the report was “not to examine particular historical cases.” And, not only did the pope not mention the Holocaust, he made only an extremely obscure reference to American Indians, Africans, or indigenous peoples: “the use of force in the service of truth.”

Thankfully, however, the Commission’s report strongly implies that more historical inquiry is needed. In South Africa such a process was led by the Truth and Reconciliation Commission.

Since 1992, we at the Indigenous Law Institute have been working to publicize the truth about the history of the Inter Cetera papal bull, delivered by Pope Alexander VI on May 4, 1493. This document, issued shortly after Columbus’ first voyage to the Caribbean, expressed the pope’s earnest desire that “barbarous nations be subjugated and brought to the faith itself,” “for the spread of the Christian Empire.” Earlier such crusading Vatican bulls called for “perpetual slavery” of Africans, by capturing, vanquishing, and subduing them, and by taking away all their possessions and property.

In the year of the Columbus quincentennial, we began a campaign to point out to the world community that these papal documents were instrumental in the injustices committed against the peoples of the Americas, Oceania, Africa, and Asia. Such papal bulls directly sanctioned colonization, the slave trade, and bloody campaigns that resulted in the deaths of millions. Scholars have correctly identified the Inter Cetera bull as the historic cornerstone of colonialism worldwide.

It is not well known that the Inter Cetera bull directly influenced the development of U.S. Indian law. Justice Joseph Story revealed that the Supreme Court included in the 1823 ruling *Johnson vs. McIntosh* the doctrine of subjugation found in the Inter Cetera bull. To this day, the *Johnson* ruling, with its distinction between “Christian people” and “natives, who were heathens,” remains an active precedent in the United States, in violation, we contend, of our human rights as American Indian nations and peoples.

With this history in mind, we wrote a letter in 1993 to Pope John Paul II, calling upon him to formally revoke the Inter Cetera bull of 1493, and to thereby explicitly overturn the Church’s doctrine of conquest and subjugation. Thus far, we have received only a stony silence from the Vatican.

Not only is the revocation of the Inter Cetera bull the right thing to do, it also would be an heroic moral act that, we believe, would assist us to challenge and overturn the doctrine of domination that underlies U.S. Indian law. Although the spirit of Inter Cetera was repudiated by the international community through the decolonization of Asia and Africa, indigenous peoples throughout the world have yet to be liberated from the historical legacy and yoke of the bull’s dominating ideology.

The International Theological Commission says that the church is “not afraid of the truth that emerges from history.” We must now wait to see if we can take the Vatican at its word, and whether a papal revocation of the Vatican’s doctrine of subjugation will accompany the pope’s noble words of contrition.